

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

Sanctions

As to sanctions, for production of documents, Section 2031.300(c) provides that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Defense counsel requested a continuance to May 6, Plaintiff’s counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted. However, Plaintiff’s request for \$2,565 is too much for this straightforward motion. Reduced to \$960 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601050	ROSARIO VS PSTPS, INC.	MOTION FOR LEAVE TO AMEND COMPLAINT OF PRISCILLA BRITTANY ROSARIO BY PRISCILLA BRITTANY ROSARI

Tentative Ruling: Granted.

No opposition filed by served defendants and several defendants have not yet been served.

Plaintiff to file proposed 1st Amended Complaint within 5 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2401945	VILLAGOMEZ VS URIBE	NOTICE OF MOTION AND MOTION FOR ORDER SETTING ASIDE DEFAULT, VACATING DEFAULT JUDGMENT

Tentative Ruling: Denied.

Moving Defendant seeks relief from previously entered default on September 25, 2024.

Court to provide notice pursuant to CCP 1019.5.